

23STCV15614 23STCV15614

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 23STCV15614 Hearing Date: July 31, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 31, 2026

Case Name: Perez, et al. v. Vernon Rock Investments LLC, et al.

Case No.: 23STCV15614

Matter: Motion to Enforce Settlement

Moving Party: Plaintiffs Maria Perez, et al.

Responding Party: Defendant Vernon Rock Investments LLC

Notice: OK

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiffs Maria Perez, et al. seek to enforce their settlement with Defendant Vernon Rock Investments, LLC in which Defendant is required to tender \$40,000 to Plaintiffs.

The Court is authorized to enter judgment pursuant to a stipulated settlement. (Code Civ. Proc. § 664.6.) In reviewing a motion to enforce a settlement, the Court determines “whether the parties entered into a valid and binding settlement.” (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.) “A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on the motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. [Citations.] If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (Id. at pp. 1182-1183; see also Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1357 [“Strong public policy in favor of the settlement of civil cases gives the trial court, which approves the settlement, the power to enforce it”].)

Plaintiffs contend that 6 weeks after there was an initial agreement, Defense counsel stated he did not have authority to settle the case.

The singular issue is whether Defendant authorized the settlement. “[A]bsent express authority, it is established that an attorney does not have implied plenary authority to enter into contracts on behalf of his client.” (Wilson v. Eddy (1969) 2 Cal.App.3d 613, 618; Blanton v. Womancare, Inc. (1985) 38 Cal. 3d 396, 407.)

Defendant contends that “During our telephone discussions, we discussed a wide range of numbers to resolve the matter. . . . I stated only that an amount in the range of \$40,000 would be considered as part of a settlement. On the other hand, we also discussed offers of less than \$10,000. A wide range of numbers were discussed. 6. I did not intend any statement to authorize my counsel to transmit a firm, unconditional \$40,000 settlement offer. 7. I understood that any settlement offer would need to be further discussed with me before my counsel sent it out in final form. 8. I did not learn of the firm offer until May 18, 2026.” (Hasan Decl. ¶¶ 5-8.)

Defense counsel states, “Based on those conversations, I mistakenly understood that I had authority to communicate a settlement offer at \$40,000 on the terms reflected in my May 11, 2026 email.”

After the May 11, 2026, offer, Defense counsel stated on May 18, 2026, that he was “working” on a long-form agreement. There was then apparently silence until June 26, 2026, when defense counsel stated to Plaintiff’s counsel that: “My client alleges that I did not have authority from him to make the settlement offer. He is not going to sign. I have been trying for the last few weeks to deal with the client on this issue but the client will not budge. It makes for a very tenuous situation. We will need to re-sent the trial date.”

Plaintiffs contend there was an agreement in principle and that the 6-week delay in communications tends to show a lack of credibility.

Based on the evidence, the Court believes there was never any settlement agreement. Attorneys require express consent to settle a case. The timeline appears consistent in that on May 18, 2026, Defense counsel states he is “working on it”, then later that same day the client learns of the unauthorized offer, and then Defense counsel spends several weeks trying to deal with the client, leading to counsel breaking his silence on June 26, 2026, that there was never any authorization. Had defense counsel continued to send emails after May 18, 2026, indicating that a draft was forthcoming that would have indicated a lack of credibility; however, such emails do not exist.

Because there was never any settlement agreement, the Motion is denied.

Moving party to give notice.